

the worker's compensation laws cannot be evaded by the ingenuity of counsel in presenting his claim for reimbursement under any variety of theories or nomenclature.

(*Id.* at p. 433.)

While Fernandes frames the 6th cause of action as a separate breach of contract claim, it does not appear to be. This cause of action includes allegations that the unauthorized changes resulted in the remnant of a sign to be left in the ground, which is alleged to be the cause of Hernandez' accident. (Cross-Complaint, ¶¶ 38-39; Complaint, ¶ 8.). In this cause of action, Fernandes seeks to recover damages – attorney's fees, costs, and potential settlement proceeds, and expenses from the underlying action. (Cross-Complaint, ¶ 41.) These are the types of damages sought on an indemnity claim. Based on these allegations, Labor Code § 3864 is seemingly applicable to this cause of action.

Accordingly, the Court sustains the demurrer as to the 6th cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than July 2, 2026, 5:00 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506427	RESNICK VS RIVERSIDE HEALTHCARE SYSTEM, L.P.	MOTION FOR RECONSIDERATION OF MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The hearing on this motion is continued to July 16, 2026, at 8:30 a.m. No further briefing is permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507246	SAAD VS MELHEM	DEMURRER ON CROSS- COMPLAINT

Tentative Ruling:

The demurrer is unopposed.

1st Cause of Action: Defamation – Libel and Slander

The Cross-Complaint alleges that, beginning January 1, 2026, Plaintiff made false statements about Defendant to third parties orally, in writing, and/or through electronic communications. (FACC ¶¶8-9.) It is alleged Plaintiff accused Defendant of engaging in illegal conduct, dishonesty, moral wrongdoing, and other acts intended to damage Defendant's personal and professional reputation and such false accusations were published to third parties including mutual acquaintances, business contacts, and members of the community. (Id. at ¶¶10-12, 18-20.) Consequently, Defendant suffered special damages not limited to loss of business opportunities, loss of income, and other economic damages. (Id. at ¶22.) The Cross-Complaint fails to plead defamation, libel and slander, to the requisite particularity as the defamatory statement is not specifically identified or set forth in the Complaint. (*Vogel v. Felice* (2005) 127 Cal.App.4th 1006, 1017.) **The Court sustains the demurrer as to the 1st cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

2nd Cause of Action: False Light

The second cause of action fails for the same reason as the first cause of action – failure to plead to the requisite particularity and specificity. **The Court sustains the demurrer as to the 2nd cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

3rd Cause of Action: IIED

The Cross-Complaint it fails to plead what the outrageous conduct is. It also fails to plead the element of severe emotional distress to the requisite specificity. (*Schlauch v. Hartford Accident Ins.* (1983) 146 Cal.App.3d 926, 936.) The Cross-Complaint fails to allege facts demonstrating the nature, extent, or duration of Cross-Complainant's alleged emotional distress. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) The Cross-Complaint merely alleges conclusory allegations. **The Court sustains the demurrer as to the 3rd cause of action with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

4th Cause of Action: Declaratory Relief

The FACC alleges an actual and justiciable controversy exists between Plaintiff and Defendant and that Plaintiff alleged, published, and continues to maintain Defendant engaged in unlawful, dishonest, and wrongful conduct that exposes Defendant to reputational harm, economic injury, and potential future liability. (FACC ¶¶42-44.) This is a proper subject for declaratory relief. (Id. at ¶¶45-46.) **Taking the allegations as true for purposes of demurrer, the Court overrules the demurrer as to the 4th cause of action.**

Special Demurrer

A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) The Cross-Complaint fails to plead defamation and false light to the requisite level of specificity and particularity such that the Court is unable to discern whether the alleged defamatory statements concerned protected speech. **The special demurrer for uncertainty is sustained with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

Moving party Pierre Saad is ordered to submit a proposed order consistent with this ruling by no later than July 2, 2026, 5:00 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507277	EH95 LLC VS AYAN	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

On May 14, 2026, the date this motion was originally set for hearing, Defendants Yusuf Ayan and Artext Wholesale, LLC ("Defendants") filed a Notice of New Authority iso Motion, citing *Santana v. Studebaker Health Care Center, LLC* (2026) 120 Cal.App.5th 1. On this basis, the Court continued the hearing on the motion to July 2, 2026, to allow the parties to provide briefing on such new authority.

In their supplemental brief, Defendants argue, under *Santana*, the court should resolve the ambiguity created by § 7.2 of the Agreement through contract interpretation, rather than treating it as a lack of mutual assent. It also argues to the extent the Agreement does not provide the location of arbitration or how to select an arbitrator, that can be resolved using C.C.P. § 1281.6, and if the court determines § 7.2 is unconscionable, it should be severed, not used to find the Agreement invalid. In its supplemental opposition, Plaintiff EH95, LLC ("Plaintiff") argues *Santana* does not undermine the Court's tentative ruling because the court in *Santana* dealt with inconsistent provisions in multiple documents that created ambiguities on how arbitration should be conducted, but there was a clear intent to arbitrate. Here, on the other hand, the problem is not with how the arbitration will proceed, but a lack of agreement as to under what circumstances arbitration would occur at all.

Defendants are correct that the court in *Santana* held the trial court there erred in finding a lack of mutual assent to an arbitration agreement, rather than using contract